

25STCV08308 25STCV08308

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-05

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Case Number: 25STCV08308 Hearing Date: August 5, 2026 Dept: 510

No.

9 - Quan Ding, et al. v. FCA US, LLC, et al.

Plaintiffs Quan Ding and Soozee Kang's Motion to Compel Initial Disclosures

Plaintiffs

Quan Ding and Soozee Kang move to compel Defendant FCA US, LLC to serve initial disclosures pursuant Code of Civil Procedure section 871.26(h). Plaintiffs also move for \$2,500 in sanctions against Defense counsel pursuant section 871.26(j)(1).

Initial Disclosures

Code

of Civil Procedure section 871.26(b) provides, "Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)."

Here, Plaintiffs argue

that Defendant has not provided written responses accompanied by verifications of defense counsel as required by Civil Code of Procedure section 2016.090(a)(5).

In addition, Plaintiffs argue that Defendant has not produced all documents required under statute, such as the complete DealerCONNECT report, unverified complaint claims, AutoPay claims, all Technical Service Bulletins, Informational Service Bulletins, and service manuals for all systems reasonably related to the alleged nonconformities.

Section 871.26 does not require a manufacturer to serve written responses with verifications. Instead, it states: "Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Civ. Proc. Code, § 871.26(b).) In their motion, Plaintiffs incorrectly conflate section 871.26 disclosures with initial disclosures under section 2016.090(a)(5). Thus, Plaintiffs' argument that Defendant has failed to provide verified disclosures is inapplicable.

Moreover, Plaintiffs do not contend that Defendant failed to produce its initial disclosures in their entirety. Instead, Plaintiffs argue that the initial disclosures are incomplete. Defendant claims it has served its complete initial disclosures which included over 1,000 pages of "repair records, warranty claims records, sales brochures, owners manual, Quick Start Guide, Warranty Booklet, Emissions Warranty, vehicle information detail report, glove box documents, the Monroney label, Technical Service Bulletins ("TSBs"), and recalls applicable to the Subject Vehicle." (Kita Decl., ¶ 7; see also Ex. A.) As section 871.26 does not require verification, Defendant was not required to have verified that all records have been produced. Thus, the Court finds that Defendant complied with its initial disclosure obligations for these categories. To the extent that Plaintiffs seek additional information, they should pursue the information through interrogatories or requests for production.

Sanctions

Plaintiffs request sanctions for \$2,500. Code of Civil Procedure section 871.26, subdivision (j) provides: "Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: [¶] (1) . . . [T]wo-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney ... paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

Because the Court finds Defendant complied with section 871.26 initial disclosure requirements, the Court denies Plaintiffs' request for sanctions.

Disposition

Plaintiffs

Quan Ding and Soozee Kang's motion to compel initial disclosures is denied.